MARKETING AND SOCIAL MEDIA RETAINER AGREEMENT

This Marketing and Social Media Retainer Agreement (the "**Agreement**") is made on 1 June 2026 (the "**Effective Date**").

BETWEEN

(1) **WARNA DIGITAL SDN. BHD.** (Company No. SAMPLE-MY-7104), a company incorporated in Malaysia with its registered office at Unit 8-3, Menara Contoh, Jalan Contoh Warna 2, 59200 Kuala Lumpur (the "**Agency**"); and

(2) **KOPI KITA SDN. BHD.** (Company No. SAMPLE-MY-1000), a company incorporated in Malaysia with its registered office at No. 1, Jalan Contoh Kopi, 50450 Kuala Lumpur (the "**Client**").

BACKGROUND

(A) The Client operates twelve (12) cafe outlets and a central roastery and sells packaged coffee online.

(B) The Agency provides social media management, content creation and campaign services, and the Client wishes to engage it for those services on a monthly retainer.

1. DEFINITIONS

1.1 In this Agreement:

"**Creative Work**" means all posts, photographs, videos, graphics, captions, campaign concepts, copy and other materials created by the Agency for the Client under this Agreement.

"**Retainer Fee**" means RM9,500 per month, exclusive of tax.

"**Services**" means the services described in Schedule 1.

"**Term**" means the Initial Term and every Renewal Term.

2. THE SERVICES

2.1 The Agency shall provide the Services from the Effective Date. The monthly deliverables are twelve (12) feed posts, twenty (20) stories, four (4) short videos, community management on weekdays and one (1) monthly performance report.

2.2 The Agency shall submit a monthly content calendar to the Client by the 25th day of the preceding month. The Client shall approve or comment within three (3) business days. Content may be published only after the Client's approval.

2.3 The Agency shall perform the Services with reasonable skill and care, in line with the Client's brand guidelines, and with all applicable advertising codes and laws, including the Malaysian Code of Advertising Practice.

2.4 The Client shall provide briefs, product information, access to its social media accounts and outlets for photography, and timely feedback. The Agency is not responsible for delay caused by late feedback.

2.5 Paid media spend is not included in the Retainer Fee. The Agency shall not commit media spend without the Client's written approval and shall pass through platform charges at cost with no mark-up.

Sample document for testing. All parties are fictional.

3. FEES AND PAYMENT

3.1 The Client shall pay the Retainer Fee monthly in advance. The Agency shall invoice on the first day of each month.

3.2 The Client shall pay each invoice within fourteen (14) days of the invoice date.

3.3 Work beyond the monthly deliverables is charged only if the Client has approved a written quotation. Production costs such as models, venue hire and props are charged at cost where the Client has approved them in advance.

3.4 Interest at one per cent (1%) per month is payable on overdue sums. The Agency may suspend the Services if an undisputed invoice remains unpaid seven (7) days after a reminder.

4. TERM AND RENEWAL

4.1 This Agreement begins on the Effective Date and continues for twelve (12) months until 31 May 2027 (the "**Initial Term**").

4.2 At the end of the Initial Term and of each Renewal Term, this Agreement renews automatically for a further twelve (12) months (each a "**Renewal Term**") unless either party gives the other not less than thirty (30) days' written notice before the end of the current term. For the Initial Term, the notice must be given on or before 1 May 2027.

4.3 On each renewal, the Retainer Fee increases automatically by ten per cent (10%) over the Retainer Fee for the preceding term.

5. INTELLECTUAL PROPERTY

5.1 The Client's trade marks, logos, product images, recipes, menus and brand materials supplied to the Agency remain the property of the Client. The Client grants the Agency a licence to use them solely to provide the Services.

5.2 Copyright and all other intellectual property rights in the Creative Work belong to the Agency until the Client has paid all invoices issued under this Agreement in full. On that payment, the Agency assigns its rights in the Creative Work to the Client, except for the Agency's pre-existing tools, templates and methods.

5.3 Until the rights pass under Clause 5.2, the Agency grants the Client a non-exclusive, non-transferable licence to use the Creative Work on the Client's own social media channels, website and outlets. The licence does not allow the Client to modify the Creative Work, to sublicense it, or to supply it to another agency.

5.4 The Agency warrants that the Creative Work will not infringe the rights of any third party, except for materials supplied by the Client. The Agency shall obtain written releases from any person who appears in the Creative Work and licences for any music or stock material it uses.

5.5 The Agency may include the Creative Work in its portfolio and case studies once the Client has published it, but shall not disclose the Client's non-public performance data.

6. ACCOUNTS AND DATA

6.1 The social media accounts, advertising accounts, handles and follower lists belong to the Client. The Agency shall use access credentials only to provide the Services, shall keep them secure, and shall return or delete them on request or on termination.

6.2 If the Agency collects personal data in running contests or campaigns, it does so as the Client's processor, shall follow the Client's instructions, shall comply with the Personal Data Protection Act 2010, and shall return or delete the data when the Services end.

7. CONFIDENTIALITY

7.1 Each party shall keep confidential all non-public information of the other, including product launches, sales figures and marketing plans, shall use it only for this Agreement, and shall disclose it only to those who need it and are bound to confidentiality.

7.2 This obligation does not apply to information that is public other than through breach, was already known to the recipient, was independently developed or lawfully received from a third party, or must be disclosed by law.

8. LIABILITY

8.1 Each party's total liability to the other under or in connection with this Agreement, whether in contract, tort or otherwise, shall not exceed the Retainer Fees paid and payable for the twelve (12) months before the event giving rise to the claim.

8.2 Neither party is liable for loss of profit or for indirect or consequential loss.

8.3 Nothing in this Agreement limits liability for fraud, death or personal injury caused by negligence, or liability that cannot be limited by law.

8.4 The Agency does not guarantee any level of followers, reach, engagement or sales.

9. TERMINATION

9.1 Either party may terminate this Agreement by written notice if the other party commits a material breach and fails to remedy it within fourteen (14) days of notice, or becomes insolvent or is wound up.

9.2 The Client may terminate this Agreement for convenience after the first six (6) months by giving sixty (60) days' written notice, and shall pay the Retainer Fee up to the date of termination.

9.3 On termination the Agency shall hand over all accounts, credentials, content calendars and work in progress within seven (7) days, and the Client shall pay all undisputed sums for Services performed.

10. GOVERNING LAW AND DISPUTES

10.1 This Agreement is governed by the laws of Malaysia, including the Contracts Act 1950 and the Copyright Act 1987.

10.2 The parties shall try to resolve any dispute by discussion for thirty (30) days. After that, either party may refer the dispute to the courts of Kuala Lumpur, which have exclusive jurisdiction.

11. NOTICES

11.1 Notices must be in writing and sent by hand, registered post or email to the addresses above. A notice sent by email is received on the next business day.

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12. GENERAL

12.1 This Agreement and Schedule 1 are the entire agreement on their subject. A variation must be in writing and signed by both parties.

12.2 The Agency is an independent contractor and may not bind the Client or make statements on the Client's behalf except as approved.

12.3 Neither party may assign this Agreement without the other's written consent. The Agency may use freelancers for production only if it remains responsible for them and they are bound by confidentiality and assignment terms consistent with this Agreement.

12.4 Any stamp duty payable under the Stamp Act 1949 is borne by the Agency.

SCHEDULE 1 - SERVICES

Content strategy, monthly calendar, creation of posts, stories and short videos for Instagram, Facebook and TikTok, community management on weekdays from 9.00 a.m. to 6.00 p.m., two (2) seasonal campaigns in each term, and a monthly report of reach, engagement and follower growth.

SIGNATURES

Signed for and on behalf of **WARNA DIGITAL SDN. BHD.**

Name: Cik Farah Contoh Title: Managing Director Date: 1 June 2026

Signed for and on behalf of **KOPI KITA SDN. BHD.**

Name: Ms. Lim Contoh Title: Managing Director Date: 1 June 2026

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